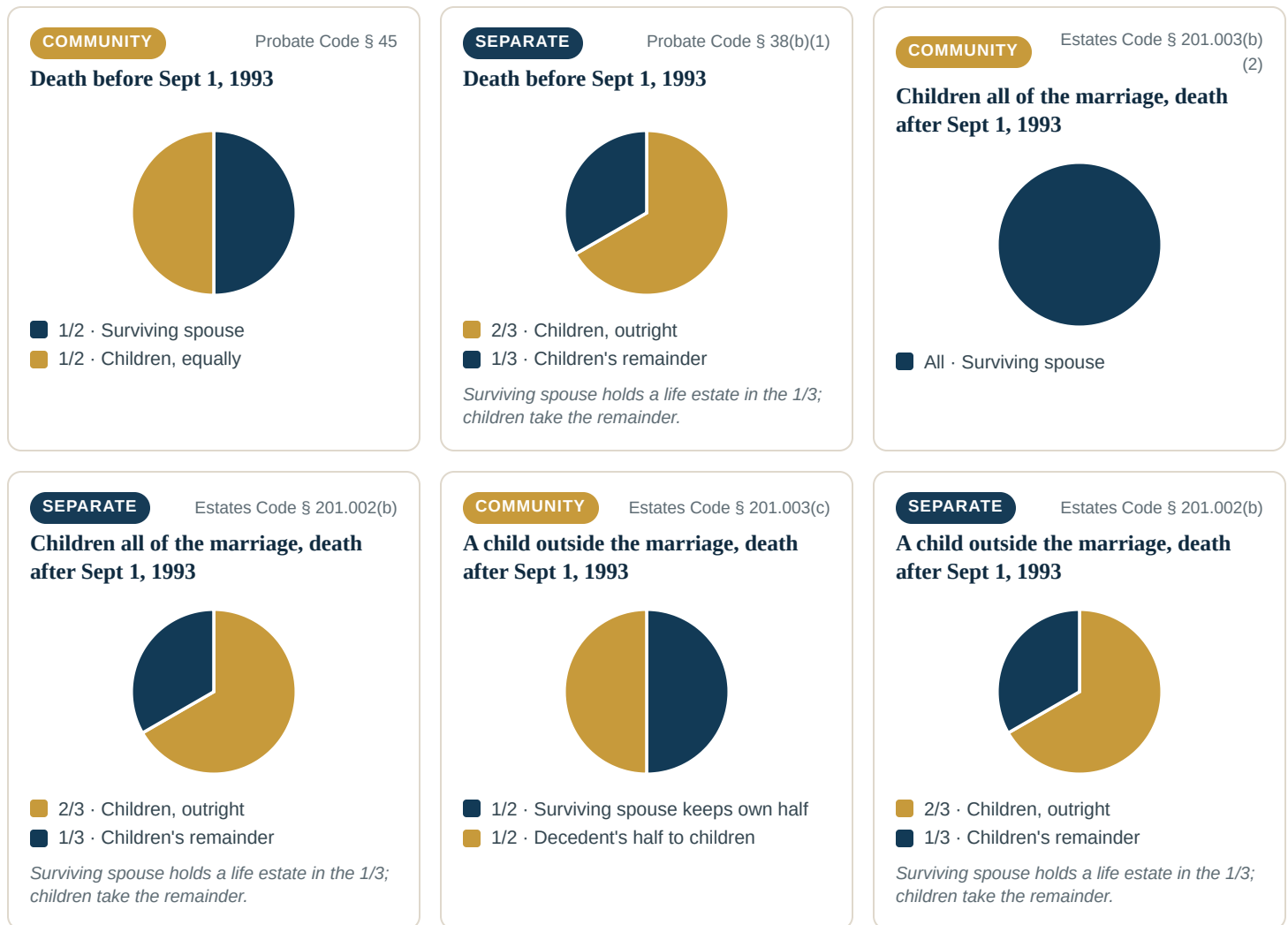


Texas Intestacy Chart

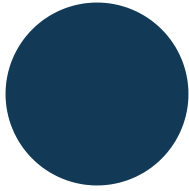
Real property, descent and distribution at a glance · Texas Estates Code Chapter 201

Who inherits Texas real property when there is no will. Each panel shows one fact pattern and the share each heir takes, under the Texas Estates Code, Chapter 201. Community property and separate property pass under different rules, and one date matters throughout: September 1, 1993, when the community property rule for children changed. Characterize each asset as community or separate before reading the chart.

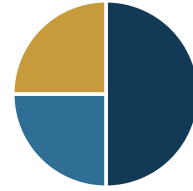
Married person with children



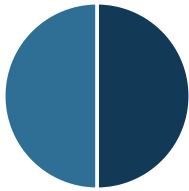
Married person with no children

COMMUNITYEstates Code § 201.003(b)
(1)**Any survivors**

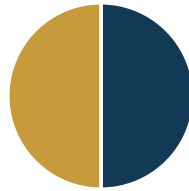
■ All · Surviving spouse

SEPARATEEstates Code §§ 201.001(c),
201.002(c)**Survived by both parents**■ 1/2 · Surviving spouse
■ 1/4 · Father
■ 1/4 · Mother**SEPARATE**Estates Code §§ 201.001(d),
201.002(c)**Survived by one parent and siblings**■ 1/2 · Surviving spouse
■ 1/4 · Surviving parent
■ 1/4 · Siblings**SEPARATE**

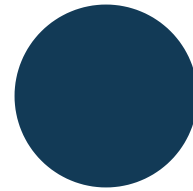
Estates Code § 201.002(c)

One parent, no siblings■ 1/2 · Surviving spouse
■ 1/2 · Surviving parent**SEPARATE**

Estates Code § 201.002(c)

Siblings only, no parents■ 1/2 · Surviving spouse
■ 1/2 · Siblings and their descendants**SEPARATE**

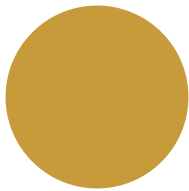
Estates Code § 201.002(d)

No parents or siblings

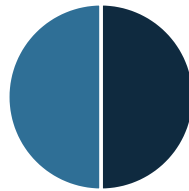
■ All · Surviving spouse

Single, widowed, or divorced person · no surviving spouse**ESTATE**

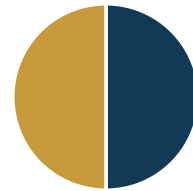
Estates Code § 201.001(b)

Survived by children■ All · Children and their descendants,
equally**ESTATE**

Estates Code § 201.001(c)

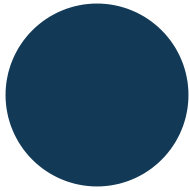
No children, both parents■ 1/2 · Father
■ 1/2 · Mother**ESTATE**

Estates Code § 201.001(d)(1)

No children, one parent and siblings■ 1/2 · Surviving parent
■ 1/2 · Siblings

ESTATE

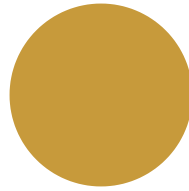
Estates Code § 201.001(d)(2)

No children or siblings, one parent

■ All · Surviving parent

ESTATE

Estates Code § 201.001(e)

No children or parents, siblings only■ All · Siblings and their descendants,
equally**ESTATE**

Estates Code § 201.001(f)

No children, parents, or siblings■ 1/2 · Paternal kindred
■ 1/2 · Maternal kindred

This chart covers Texas real property and is prepared for landmen and title professionals as a working field tool. It is not legal advice and does not substitute for the advice of qualified Texas oil and gas counsel. Distributions turn on the community or separate character of each asset and on facts such as prior marriages and predeceased heirs. Complex or disputed heirship should be referred to a licensed Texas attorney. Citations are to the Texas Estates Code, effective January 1, 2014, which recodified the former Texas Probate Code. Note: a predeceased heir's share passes to that heir's descendants by representation.